

STATE OF NEW YORK

8608--A

2025-2026 Regular Sessions

IN SENATE

December 8, 2025

Introduced by Sen. MYRIE -- read twice and ordered printed, and when printed to be committed to the Committee on Rules -- recommitted to the Committee on Procurement and Contracts in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the state finance law, in relation to the purchase of firearms, ammunition, and firearm accessories

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The state finance law is amended by adding a new section 139-n to read as follows:

§ 139-n. Statement in bids for the purchase of firearms, ammunition, and firearm accessories. 1. (a) Every bid hereafter made to the state or any public department or agency thereof, where competitive bidding is required by statute, rule or regulation, for the purchase of firearms, ammunition, or firearm accessories, shall contain the following statement subscribed by the bidder and affirmed by such bidder as true under the penalty of perjury:

"By submission of this bid, each bidder and each person signing on behalf of any bidder certifies, and in the case of a joint bid each party thereto certifies as to its own organization, under penalty of perjury, that the bidder:

(i) is duly licensed pursuant to applicable federal, state, and local law to sell or transfer firearms, ammunition, or firearm accessories, where such licensure is required;

(ii) is in compliance with all applicable federal, state, and local laws, rules, and regulations relating to the sale, transfer, storage, and disposition of firearms, ammunition, and firearm accessories;

(iii) does not sell, offer for sale, advertise, market, distribute, or otherwise transfer unserialized gun build kits or firearm precursor parts;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD13949-03-6

1 (iv) has and has implemented written policies, procedures, or prac-
2 tices to prevent, detect, and screen for straw purchases and firearm
3 trafficking;

4 (v) has and has implemented written policies, procedures, or practices
5 to prevent, detect, and screen against the sale or transfer of firearms,
6 ammunition, or firearm accessories to any individual prohibited from
7 possessing a firearm by federal, state, or local law or court order;

8 (vi) has and has implemented written policies, procedures, or prac-
9 tices to prevent, detect, document, and report the theft or loss of
10 firearms, ammunition, or firearm accessories;

11 (vii) provides training to employees regarding compliance with appli-
12 cable federal, state, and local laws, rules, and regulations relating to
13 the sale or transfer of firearms, ammunition, and firearm accessories;
14 and

15 (viii) operates a digital video surveillance system at each premises
16 where firearms, ammunition, or firearm accessories are sold, stored, or
17 transferred."

18 (b) Every bid hereafter made to the state or any public department or
19 agency thereof, where competitive bidding is not required by statute,
20 rule or regulation, for the purchase of firearms, ammunition, or firearm
21 accessories, may contain, at the discretion of the department, agency or
22 official, the certification required pursuant to paragraph (a) of this
23 subdivision.

24 2. Notwithstanding the foregoing, the statement required by paragraph
25 (a) of subdivision one of this section may be submitted electronically
26 in accordance with the provisions of subdivision seven of section one
27 hundred sixty-three of this chapter.

28 3. A bid shall not be considered for award, nor shall any award be
29 made to a bidder who has not complied with subdivision one of this
30 section; provided, however, that if the bidder cannot make the foregoing
31 certification, such bidder shall so state and shall furnish with the bid
32 a signed statement which sets forth in detail the reasons therefor. The
33 department, agency or official receiving such bid may request documenta-
34 tion, including inspection reports, notices of violation, or other
35 records, as may be necessary to verify any certification or signed
36 statement submitted pursuant to this section.

37 4. Any bid hereafter made to the state or any public department, agen-
38 cy or official thereof, by a corporate bidder for the purchase of
39 firearms, ammunition, or firearm accessories, where such bid contains
40 the statement required by subdivision one of this section, shall be
41 deemed to have been authorized by the board of directors of such bidder,
42 and such authorization shall be deemed to include the signing and
43 submission of such bid and the inclusion therein of such statement as
44 the act and deed of the corporation.

45 § 2. This act shall take effect April 1, 2027.